

Data Privacy & FERPA Compliance Guide

Overview

ParentSquare is committed to protecting student and family data in full compliance with FERPA, COPPA, CIPA, and applicable state privacy laws. This guide explains how district data is handled, stored, and protected within the ParentSquare platform.

1. FERPA Compliance

What is FERPA?

The Family Educational Rights and Privacy Act (FERPA) protects the privacy of student education records. ParentSquare operates as a 'school official' under FERPA's legitimate educational interest exception, meaning districts may share student data with ParentSquare without additional parental consent.

What Data ParentSquare Receives

- Student name, grade level, school, and unique student identifier (no SSN).
- Family contact information: phone numbers, email addresses, preferred language.
- Attendance records when the Attendance Management module is active.
- Emergency contact information and authorized pickup designations.

What ParentSquare Does NOT Receive

- Academic performance records, grades, or test scores.
- Disciplinary records, IEP/504 data, or special education classifications.
- Social Security numbers, financial aid data, or health records.

2. COPPA Compliance

The Children's Online Privacy Protection Act (COPPA) applies to collection of personal information from children under 13. ParentSquare does not create accounts for students — all accounts belong to parents, guardians, and school staff. ParentSquare does not knowingly collect personal data directly from minors.

3. Data Storage and Security

Infrastructure

- All data is stored on AWS infrastructure in the United States (us-east-1 by default).
- Data is encrypted at rest (AES-256) and in transit (TLS 1.2+).
- ParentSquare maintains SOC 2 Type II and ISO 27001 certifications.

- Annual penetration testing by third-party security firm.

Data Retention

- Active district data is retained for the duration of the contract plus 90 days.
- Upon contract termination, district data is purged from production systems within 90 days.
- Message logs are retained for 7 years for compliance and audit purposes.
- Attendance data is retained for 3 years after the school year closes.

4. Data Processing Agreement (DPA)

All districts are required to execute a Data Processing Agreement (DPA) before activating the ParentSquare platform. The DPA governs how ParentSquare processes personal data on behalf of the district as a data controller. Key DPA provisions include: purpose limitation, data minimization, sub-processor transparency, breach notification within 72 hours, and district right to audit.

5. Family Rights Under FERPA

- Families have the right to review their student's education records held by ParentSquare.
- Families may request correction of inaccurate data by contacting their district's IT Director.
- Families may opt out of receiving non-essential communications by managing preferences in the ParentSquare app.
- ParentSquare does not sell, rent, or share family data for commercial advertising purposes.

6. Breach Response Protocol

In the event of a data breach involving student or family data, ParentSquare will notify affected districts within 72 hours of confirmed breach discovery. The district must then notify affected families per applicable state law (typically within 30–45 days). ParentSquare's Security team provides forensic analysis support and remediation guidance.

7. State-Specific Privacy Laws

California (SOPIPA, AB 1584)

ParentSquare complies with California's Student Online Personal Information Protection Act. ParentSquare does not use student data for targeted advertising and does not build profiles of students outside of educational purposes.

New York (Education Law 2-d)

New York districts must execute a Parents Bill of Rights and include ParentSquare in their Third-Party Contractor list. ParentSquare supports NY's data security requirements including role-based access control and audit logging.

Other States

ParentSquare monitors and responds to new student data privacy legislation across all 50 states. Contact privacy@parentsquare.com for state-specific DPA addendums.